

25STCV32139 25STCV32139

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C07%2F29%2F2026

Source SHA-256: ca8304e6b94b78183329870a5e5eab6731c601f5d23270c2e4ac2818f688a733

Case Number: 25STCV32139 Hearing Date: July 29, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:28 PM on July 28, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 28, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

was illegally parked. He received a parking ticket and his car was towed with his dog inside for 5 hours. The tow truck driver opened the car door and the dog escaped. When Plaintiff returned to find the car gone, he worried about the dog. Plaintiff heard cars beeping and whistled for the dog. The dog, unharmed,

came running to the Plaintiff. Plaintiff seeks damages and injunctive relief.

Plaintiff moves for leave to file a Second Amended Complaint. On July 15, 2026, the Court sustained Defendant Towerk's and Defendant City of Los Angeles' demurrers to the First Amended Complaint without leave to amend, but indicated it would consider this motion which was already scheduled to see if leave to amend would be granted.

TENTATIVE RULING

Plaintiff

Javier Alexander Mejia Sevilla's motion for leave to file a Second Amended Complaint is GRANTED. Plaintiff is only given leave to file the exact proposed Second Amended Complaint which was submitted on May 13, 2026 as an exhibit to Plaintiff's Supplemental Declaration filed on May 13, 2026. Plaintiff is to file an exact copy of this Second Amended Complaint within 2 days of this order. If Plaintiff files a different version of the Second Amended Complaint other than what was submitted on May 13, 2026, the Court will order that Second Amended Complaint stricken and the case will be dismissed with prejudice.

The

Second Amended Complaint which is attached to the Supplemental Declaration of Plaintiff filed on May 13, 2026 is deemed served upon the parties as of the date of this order. Defendants shall have 30 days to respond to the Second Amended Complaint.

ANALYSIS

Motion For Leave To Amend

Request For Judicial Notice

Plaintiff

requests that the Court take judicial notice of the following:

Exhibit A:

The Superior Court of California, County of Los Angeles Minute Order dated July 15, 2026, in Case No. 25STCV32139, entitled: Javier Alexander Mejia Sevilla v. City of Los Angeles, Los Angeles Department of Transportation, and Viertel's Towing.

Exhibit B:

The Court's docket and filings in this action, including: Plaintiff's original Complaint; Plaintiff's First Amended Complaint; Defendants' The Demurrers without Motions to Strike; Court's July 15, 2026 Minute Order;

Plaintiff's

requests are GRANTED per Evid. Code § 452(d)(court records).

Defendant

City of Los Angeles requests that the Court take judicial notice of the following:

1. Plaintiff

JAVIER ALEXANDER MEJIA SEVILLA's ("Plaintiff's") November 4, 2025, Complaint. A copy of the Complaint is attached as Exhibit "A" to this Request.

2. The

Court's April 3, 2026, Minute Order, containing the Court's ruling on Defendants' demurrers to Plaintiff's Complaint. A copy of the April 3, 2026, Minute Order is attached as Exhibit "B" to this Request.

3. The

Court's July 15, 2026, Minute Order, containing the Court's ruling on Defendants' demurrers to Plaintiff's First Amended Complaint. A copy of the July 15, 2026, Minute Order is attached as Exhibit "C" to this Request.

Requests

Nos. 1 – 3 are GRANTED per Evid. Code § 452(d)(court records).

Discussion

On July

15, 2026, the Court sustained Defendant Towwerk's and Defendant City of Los Angeles' demurrers to the First Amended Complaint without leave to amend, but indicated it would consider this motion, which was already scheduled, to see if leave to amend would be granted.

Plaintiff

filed a notice of motion and supplemental declaration on May 13, 2026, an

amended notice of motion, supporting memorandum of points and authorities, declaration, request for judicial notice and index of exhibits on July 21, 2026 (which is only 8 days before the hearing date), an index of exhibits on July 22, 2026 (which is only 7 days prior to the hearing date).

Despite

the haphazard nature and untimeliness of the entirety of Plaintiff's submissions, the Court will consider them. However, the Court also incorporates by reference its discussion of the various legal arguments presented by Defendants in opposition to the demurrer. (See July 15, 2026 minute order.)

After

considering the proposed Second Amended Complaint, the Court will give Plaintiff this single additional, but unequivocally final, opportunity to amend. Plaintiff's motion for leave to file a Second Amended Complaint is GRANTED. Plaintiff is only given leave to file the exact proposed Second Amended Complaint which was submitted on May 13, 2026 as an exhibit to Plaintiff's Supplemental Declaration filed on May 13, 2026. Plaintiff is to file an exact copy of this Second Amended Complaint within 2 days of this order. If Plaintiff files a different version of the Second Amended Complaint other than what was submitted on May 13, 2026, or fails to file within two days, the Court will order that Second Amended Complaint stricken and the case will be dismissed with prejudice.

The

Second Amended Complaint which is attached to the Supplemental Declaration of Plaintiff filed on May 13, 2026 is deemed served upon the parties as of the date of this order. Defendants shall have 30 days to respond to the Second Amended Complaint.